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JEFFERY WILLIAMS,
Plaintiff

-VS-

STEVE LEE MID STATES PULLERS, a
Minnesota Corporation and ANDREW
WOBSCHALL,
Defendants

COMPLAINT

Now comes the plaintiff, JEFFERY WILLIAMS, by his attorneys, BARRY L.GORDON & ASSOCIATES, P.C., and complaining against the defendants, STEVE LEE MID STATES PULLERS, a Minnesota Corporation, (hereinafter referred to as “Mid States Pullers”), and ANDREW WOBSCHALL, states as follows:

COUNT I

JURISDICTION and VENUE

1. Jurisdiction in this case is based upon diversity and citizenship and amount, pursuant to 28 U.S.C. § 1391. The Plaintiff is a resident of Illinois. Defendant, Steve Lee Mid States Pullers is a Minnesota corporation. Defendant, Andrew Wobschall, is a Minnesota resident.

2. That the amount of damage sought, herein, exclusive of interest and costs, exceeds the sum of \$75,000.00.

3. Venue is placed in this district because the accident occurred in DuPage County, Illinois, which is in the Northern District of Illinois, Eastern Division.

FACTS

4. That on December 26, 2007, the defendant, Mid States Pullers, owned, possessed,

and/or controlled a certain motor vehicle to-wit: a 2000 Peterbilt semi-truck, which was being driven by its agent, servant or employee, defendant, Andrew Wobschall.

5. That said vehicle was then and there operated, and/or controlled by the defendant, Andrew Wobschall, and proceeded in a general westerly direction along and upon I-88, at or near Milepost 137, located in York Township, County of DuPage, State of Illinois.

6. That on the said date, the plaintiff, Jeffery Williams, was driving his 1994 Chevrolet Lumina vehicle, proceeding in a general westerly direction along I-88 at or near Milepost 137, located in York Township, County of DuPage, State of Illinois.

7. That it then and there became and was the duty of defendant, Mid States Pullers, individually and by and through its duly authorized agent, servant and/or employee, defendant, Andrew Wobschall, to exercise ordinary care in the ownership, operation, possession and control of the said vehicle so as not to cause injury to other motorists upon the highway.

8. That notwithstanding the aforesaid duty, the defendant, Mid States Pullers, by and through its' duly authorized agent, defendant, Andrew Wobschall, negligently and carelessly committed one or more of the following wrongful acts or omissions:

- (a) Carelessly and negligently operated, managed, maintained and controlled his motor vehicle so that as a direct and proximate result thereof, the plaintiff was injured;
- (b) Carelessly and negligently operated, managed, maintained and controlled his motor vehicle at a rate of speed that was greater than reasonable having regard for the traffic and the use of way, contrary to and in violation of the provisions of Chapter 625, Sec. 5/11-601 Illinois Compiled Statutes;
- (c) Carelessly and negligently operated, managed, maintained, and controlled his motor vehicle without keeping a proper and sufficient lookout;
- (d) Carelessly and negligently failed to apply the brakes as needed to avoid

colliding with other vehicles;

- (e) Carelessly and negligently failed to keep said motor vehicle under sufficient and proper control;
- (f) Carelessly and negligently changed lanes when it was unsafe to do so;
- (g) Carelessly and negligently changed lanes without signaling, in violation of 625 ILCS 5/11-804.

9. That as a direct and proximate result of one or more of the foregoing wrongful acts or omission, the motor vehicle owned, possessed, operated, and/or controlled by the defendants was caused to and did strike the vehicle of the plaintiff.

10. That by reason of the premises, plaintiff suffered multiple and diverse injuries on and about his body, both internally and externally, all or some of which are permanent; that as a consequence thereof, plaintiff has suffered and will in the future suffer great pain and mental anguish; that in addition thereto plaintiff has become and will be obligated for large sums of money for reasonable medical expenses endeavoring to be cured of said injuries, and has otherwise suffered pecuniary damages.

WHEREFORE, the plaintiff, JEFFERY WILLIAMS, prays for judgment against the defendant, MID STATES PULLERS, a Minnesota corporation, in the sum of THREE HUNDRED THOUSAND (\$300,000.00) DOLLARS, together with the costs of this action.

COUNT II

Now comes the plaintiff, JEFFERY WILLIAMS, by and through his attorney, BARRY L.GORDON & ASSOCIATES, P.C., and complaining of the defendant, ANDREW WOBSCHALL, states as follows:

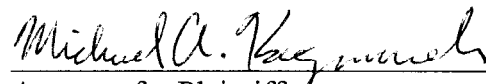
1.-6. Plaintiff, Jeffery Williams, realleges Paragraphs One through Six of Count I as his Paragraphs One through Six of this Count II.

7. That it then and there became and was the duty of the defendant, ANDREW WOBSCHALL, to exercise ordinary care in the operation, possession and control of the said vehicle so as not to cause injury to other motorists upon the highway.

8.-10. That the plaintiff realleges Paragraphs Eight through Ten of Count I to stand as Paragraphs Eight through Ten of this Count II.

WHEREFORE, the plaintiff, JEFFERY WILLIAMS prays for judgment against the defendant, ANDREW WOBSCHALL for the sum of THREE HUNDRED THOUSAND (\$300,000.00) DOLLARS, together with the costs of this action

BARRY L.GORDON & ASSOCIATES P.C.


Attorney for Plaintiff

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